

DOMINUS REX *vers.* THE JUSTICES OF SOMERSETSHIRE.

Vestry cannot order overseers to retain balance of their accounts. 2 Sess. Ca. p. 283, No. 174. Cunn. 105, S. C.

Mandamus to the justices, to grant a warrant for levying 30l. 17s. 11d. being the balance of the last overseers of the poor's account in their hands. They return, that true it is there was such a balance, but that the vestry had ordered them to retain it, and employ an attorney to sue for some charity money, and get it laid out for the benefit of the poor; that one Young was so employed, and the balance exhausted in fees, and that the overseers had engaged to pay Young; et ea de causa they had refused to grant the warrant.

Et per Curiam, there must go a peremptory mandamus, for the statute 43 Eliz. c. 2, says, the balance shall be paid over to the new overseers, under a penalty: and it is not in the power of the vestry to dispense with the statute.

[993] SMITH *vers.* DR. BOUCHIER ET AL'.

Justification under process of University of Oxon held ill, and where those who might justify join those who have not a good justification, it is bad as to all. Cas. temp. Hardw. 62. 2 Barn. B. R. 331. 2 Kely. 144, pl. 123. Cunn. 89, 127, S. C.

Trespass and false imprisonment against five defendants. They all join in a plea of not guilty as to all but eight days imprisonment, which they justify, for that the chancellor and scholars of Oxford were a corporation by prescription, and that by Act of Parliament, 13 Eliz. they were incorporated, and had power by custom to hold a court every Friday before the chancellor, his commissary or deputy, for all personal actions, where either party was a scholar, or had the privilege of the university. That by the custom, a plaintiff making oath, that he has a personal action against any person within the precincts of the university, and that he believes the defendant will not appear, but run away, the Judge may award a warrant to arrest him, and detain him till security given for his answering the complaint. That 7 August 1731, the defendant Bouchier having the privilege of the university, made a complaint to the defendant Shippen the vice-chancellor, of a personal action against the now plaintiff, to his damage of 1000l. according to his estimation, and that he suspected the now plaintiff would run away: that he took his oath of and upon the truth of the premisses, upon which a warrant was granted to the other defendants, who arrested him, and kept him in prison eight days for want of sureties; and traverse their being guilty aliter vel alio modo. To this there was a frivolous replication, and to that a demurrer.

Strange pro quer' argued, 1. That the custom was bad; and 2. If good, yet it is not pursued.

His objections to the custom were all over-ruled, but were, 1. That the custom is to make oath that he has a personal action, not a cause of action; so he must swear to matter of law. Sed per Curiam, that is no more than is done in many cases. 2. In the case of a ne exeat there must be oath of the parties, declaring he intends to go abroad; whereas here a bare belief is sufficient, without shewing the grounds of it.

But upon the second head the Court held that the custom was not pursued. 1. By the custom he is to swear to his belief of the defendant's design to run away; whereas the oath is only that he suspects it, which is not the same: that may be a ground for suspicion, which will not induce a belief. 2. The oath is only of and upon the truth of the premisses; now a man who swears the premises are false, does so. Hil. 12 Ann. *Regina v. Green*, a conviction for selling bread quashed, because the wit[994]-nes only swore de veritate præmissorum (1). So Pas. 13 Ann. *Regina v. Gery*, præstat sacramentum de veritate materialium in informatione contentarum, was held ill.

For these reasons the justification was held ill. And though some of the defendants, as the officer and gaoler, might have been excused, if they had justified without the plaintiff, or the vice-chancellor (2); yet it was held, that by joining with them, as to whom the process was no justification, they have forfeited their justification (3);

now the Judge and the plaintiff knew the oath was not sufficient. And 2 Lutw. 935, goes upon that, and so did the case of *Philips v. Biron* (ante, 509) (4). Upon this foundation therefore the plaintiff must have judgment against all the defendants.

(1) *Rex v. Pullen*, Salk. 369, contra.

(2) All the reports of this case concur in making the Court incline to this judgment upon the first argument, but in Cunn. 127, Lord Hardwicke, in delivering the final judgment of the Court, rather expressed a contrary opinion, and in *Perkins v. Proctor*, 2 Wils. 385, the Court made a quære as to this dictum, for none could have justified the whole proceedings, they being coram non iudice, and a mere nullity. Vide *Hill v. Bateman*, ante, 711. *Shergold v. Holloway*, post, 1002.

(3) *Middleton v. Price*, post, 1184, S. P.

(4) Vide also *Parsons v. Lloyd*, 2 Black. 845, and in *Perkins v. Proctor*, 2 Wils. 382.

TRYON *vers.* CARTER.

Immaterial issue. Cunn. 71, 106, S. C. more full cited 1 Burr. 302.

A bond was conditioned for the payment of money on or before 5 December. The defendant pleaded payment on the 5 December, to which there was a replication (1): and a verdict for the plaintiff. But a repleader awarded, as being an immaterial issue, for it finds no breach of the condition, because it might be paid before the 5 December, and then the condition is performed: and it is not like a case where a condition is to pay upon such a day, for then there can be no legal payment till that day, an actual payment before being but in the nature of a deposit, till the day. But here it would be a legal payment at any day. Vide ante, 493, *Colborne v. Stockdale*. 1 Saund. 102. *Jernegan v. Harrison*, ante, 317.

(1) The replication as stated in Cunn. 71, and Bull. L. N. P. 162, was, "that the money was not paid on that day," which was ill, for the defendant having pleaded a strict performance, and not a collateral matter, the replication ought not only to have met the defendant's plea, but have shewn that the money was not paid at all. Vide *Fletcher v. Hennington*, B. R. 2 Burr. 994. 1 Black. 210, S. C. *Anon.* C. B. 2 Wils. 173. Bull. L. N. P. 162.

DOMINUS REX *vers.* ELLIS.

Where the mayor is to be sworn before the last mayor there must be his assent to the swearing, and his presence is not sufficient.

By the charter of New Romney the new mayor is to be sworn before his predecessor. At the election there were two candidates, Ellis and Whitwick; Ellis had the majority, notwithstanding which the mayor ordered Whitwick to be sworn; upon which the town clerk read the oath, and both Ellis and Whitwick had their hands upon the book, and kissed it. Upon trial of the issue, whether Ellis was duly sworn, it was ruled by Eyre C. J. de C. B. at Maidstone, that it was not a good swearing; for as it is to be the act of the mayor, his assent must go along with it: and that there is no difference between swearing by and before the mayor. And now upon motion for a new trial the Court were of the same opinion, and there was judgment against the defendant.

[995] HOWARD *vers.* POOLE.*

Separate creditor may come in under a joint commission of bankruptcy. Cunn. 111. Lex. Merc. Red. 498, S. C.

There was a joint commission against the defendant and his partner. And the plaintiff was a separate creditor of the defendant's, and arrested and held him to bail. But on motion he was discharged on common bail; the plaintiff being such a creditor, as might have come in under the joint commission (1).